

The Smoking GUN

The Bofors scandal returns to haunt the Congress during the elections. Who messed up?

By Bhavna Vij-Aurora

It's the classic smoking gun. Bofors has returned to haunt the Congress with the CBI removing the name of Italian businessman Ottavio Quattrocchi, the lone surviving accused in the Bofors payoff scandal, from the list of wanted persons and ensuring that the Interpol removes the Red Corner Notice (RCN) against him. This comes 12 years after the CBI issued an arrest warrant against Quattrocchi and the Interpol issued its RCN. The quashing of the warrant gives Quattrocchi the freedom to travel around the world except to India, where a bribery case is still pending against him. All the other accused in the Rs 64-crore Bofors payoff case are either dead or have been exonerated (see box). Now even the fig leaf, lending some credence to the case, is gone.

Predictably, the BJP has latched on to the issue to thrash the Congress and its president and chief campaigner, Sonia Gandhi. She was the Italian connection which originally connected Quattrocchi to the case because of his friendship with her and her late husband and then prime minister Rajiv Gandhi. Though the Congress has rubbished the BJP's allegations that the CBI move was influenced by the Government to let

Quattrocchi off the hook once again just before a new government is sworn in, the timing is too convenient to be mere coincidence. The fact is that the CBI took the step only after Law Minister H.R. Bhardwaj personally cleared the file on the basis of legal opinion offered by Attorney General Milon Banerjee on October 28, 2008, terming the RCN "a continuing embarrassment". CBI Director Ashwani Kumar took the decision in close consultation with Minister of State for Personnel Prithviraj Chavan and Bhardwaj. When contacted, Kumar refused to comment, saying that the matter was sub-judice.

For Sonia and the Congress, the issue could not have surfaced at a worse moment. It was the Bofors scandal which led to Rajiv Gandhi's defeat in the 1989 elections. Of all the payoff suspects, which included the Hinduja brothers, Quattrocchi has allegedly been the main recipient of the Rs 64 crore that was to have been paid by Bofors to seal the deal. Former CBI chief Joginder Singh claims that the agency had documentary evidence that Quattrocchi received \$7.32 million paid into Swiss bank accounts. He also admitted to

QUATTROCCHI AFTER ARGENTINA REFUSED TO EXTRADITE HIM TO INDIA

